

Piclo (Open Utility Ltd.)
35 Holland Grove
London, SW9 6ER

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Date: 19 May 2021

CONFIDENTIAL

Oliver Terbury-Hodgson
Flat 2A Greenwich South Street
Greenwich
SE10 8TY

DEFINITION OF TERMS

OPEN UTILITY LTD a company limited by shares, incorporated in England and Wales under company registration number 08384033 whose registered office is at 35 Holland Grove, London, England, SW9 6ER ("we", "us", "our", "the Company" or "Piclo");

Oliver Mark Cristian Yerbury-Hodgson of Flat 2A Greenwich South Street, Greenwich, SE10 8TY ("you", "your" or "the Employee").

CONTRACT OF EMPLOYMENT

Job Title: Full-stack Software Engineer

Job Description: You'll work on our core product - Piclo Flex marketplace. In a typical week, you'll be involved in writing and reviewing code as well as taking part in or influencing the discovery and scoping of new features, working alongside a cross-functional team of developers, designers and product managers.

Start Date: Monday 28th June 2021

Salary: £57,500 per annum

Place of Work: London Office. Non-contractual remote working policies are outlined in the Company Handbook and may be subject to change.

Working Schedule: This is a full-time role requiring approximately 35 Hours of Work per week. Your regular working schedule will be Monday to Friday.

Holiday Entitlement: 25 days per annum, plus UK Bank Holidays.

STANDARD TERMS AND CONDITIONS

1. Notice and Eligibility

- 1.1. This agreement supersedes and replaces any previous contract of employment, prior agreements and understandings you may have had with the Company.
- 1.2. You warrant that you are entitled to work in the United Kingdom without any additional approvals and are resident for tax purposes. You will notify the Company immediately if you cease to be so entitled at any time during your employment.

2. Commencement of Employment and Probationary Period

- 2.1. Your employment will commence on Monday 28th June 2021.
- 2.2. The first three months of your employment will be subject to a probationary period. During this period your performance and suitability for continued employment will be monitored. Your employment may be terminated during this period at any time on one week's prior written notice. The Company may, at its discretion, extend the probationary period for up to a further three months. You will be notified in writing if you have successfully completed your probationary period or if an extended probationary period is required by the Company.

3. Employment Duties

- 3.1. In addition to the responsibilities outlined in your Job Description, you may be required to undertake other duties as the Company may reasonably require.
- 3.2. You are required to comply with the Company's rules and procedures as defined in the Company Handbook, which may change from time to time. You will be notified in writing of any significant modifications to the Company Handbook but are otherwise expected to refer to it for minor changes during the course of your employment.
- 3.3. You may work for other employers, as long as in doing so you do not breach confidentiality; your ability to fulfil your duties to the satisfaction of the Company is not impeded; you are not likely to be subject to a conflict of interest.
- 3.4. The Company reserves the right to decide (if necessary after consulting with an outside employer) that there is or may be a conflict of interest and to require you to

cease working for (or not to engage with) the outside employment giving rise to the conflict.

4. Place of Work

- 4.1. Your normal Place of Work shall be Piclo's premises, London Office.
- 4.2. In addition to your normal Place of Work, you shall work in such other place within Greater London as the Company may reasonably determine.
- 4.3. The Company may develop flexible or remote working policies. If it does so, these non-contractual policies will be outlined in the Company Handbook and may be subject to change.
- 4.4. You agree to travel (either within the United Kingdom or abroad) as may be reasonably required for the proper performance of your duties for the Company. Expenses arising from such travel will be reimbursed as outlined in the Company Handbook.

5. Remuneration

- 5.1. Your Salary will accrue from day to day and be payable monthly in arrears on or before the 28th day of the month. Payment will be made directly into your nominated bank account by electronic transfer.
- 5.2. Your Salary will be paid to you subject to any deductions, which will include tax and national insurance contributions.
- 5.3. Your Salary will be reviewed as outlined the Company Handbook and may be increased from time to time at the Company's discretion without affecting the other terms of your employment. There is no obligation on the Company to award an increase. There will be no review of your Salary after notice has been given by either party to terminate your employment.
- 5.4. The Company will be entitled to deduct from your Salary or other payments due to you any money which you may owe to the Company at any time. You will be notified in advance of any such deductions and your signing of this Contract will be your consent to such deductions being made.

6. Working Schedule

- 6.1. This is a full-time role requiring approximately 35 hours of work per week. Your regular working schedule will be Monday to Friday.

- 6.2. In addition to your normal hours of work, you may be required to work such additional hours, without payment of overtime, as the Company reasonably considers may be necessary for the proper performance of your role.
- 6.3. If you are required to work on days beyond your normal working schedule, you may take time off in lieu, in accordance with the procedures set out in the Company Handbook.

7. Holiday Entitlement

- 7.1. Full-time staff are entitled to 33 days of paid leave per annum, which includes public holidays in the United Kingdom. The allowance begins on the Start Date of your employment and accumulates with each subsequent month of employment.
- 7.2. The Company's holiday year runs between 1 January and 31 December. If your employment starts after the holiday year has commenced, your Holiday Entitlement during your first year of employment will be calculated on a pro-rata basis, rounded up to the nearest whole day.
- 7.3. Unused holiday entitlement may not be carried forward to the next holiday year. If for any reason you do not take all of your Holiday Entitlement in any holiday year, save as provided in clause 7.4, the Company will not make any payment in lieu.
- 7.4. On termination of your employment you will be entitled to be paid in lieu of accrued but untaken holiday save that where such termination is pursuant to clause 9.2 or is during the probationary period as provided in clause 2.2 during which accrued but untaken holiday will be based on your minimum holiday entitlement under the Working Time Regulations 1998 only and not on your entitlement under clause 7.1. For these purposes, any paid holiday that you have taken (including any paid holiday on public holidays) will be deemed statutory paid holiday. The amount of the payment in lieu will be calculated on the basis that each day of holiday is equal to 1/260 of your salary.
- 7.5. If you have taken more holiday than your pro-rata entitlement at the date of termination of your employment, the Company will be entitled to make deductions from payments due to you (on the basis that each day of holiday is equal to 1/260 of your salary).
- 7.6. The Company may require you to take any outstanding holiday entitlement during your notice period.

8. Absence

- 8.1. If you are absent from work for any reason, you must notify the Company of the reason for your absence as soon as possible and no later than 10 am on the first day

of absence (provided you are reasonably able to do so). You should keep the Company regularly informed of any further absence thereafter.

- 8.2. In all cases of absence written notice should be given to the Company. For any period of incapacity due to sickness or injury which lasts for seven consecutive days or more, a fit note from your doctor stating the reason for absence must be obtained at your own cost and promptly supplied to the Company. Further fit notes must be obtained if the absence continues for longer than the period of the original fit note.
- 8.3. Subject to your compliance with clauses 8.1 and 8.2 and any Company absence procedure (as amended from time to time), you will continue to receive your full salary and contractual benefits during any period of absence due to incapacity for up to an aggregate of two weeks in any 52-week period and thereafter half of your salary and contractual benefits during any further period of absence due to incapacity for up to an aggregate of two weeks in any 52-week period. Such payment will be inclusive of any statutory sick pay due in accordance with applicable legislation in force at the time of absence. Thereafter you will be entitled to statutory sick pay. Your qualifying days for statutory sick pay purposes are Monday to Friday.
- 8.4. If your incapacity is or appears to be occasioned by actionable negligence, nuisance or breach of any statutory duty on the part of a third party in respect of which damages are or may be recoverable, you must immediately notify the Company of that fact and of any claim, compromise, settlement or judgment made or awarded in connection with it and all relevant particulars that the Company may reasonably require. You will if required by the Company, refund to the Company that part of any damages or compensation recovered by you relating to the loss of earnings for the period of incapacity as the Company may reasonably determine less any costs borne by you in connection with the recovery of such damages or compensation, provided that the amount to be refunded will not exceed the total amount paid to you by the Company in respect of the period of incapacity.
- 8.5. If, for example, you are absent due to illness for an extended period of time or you have taken frequent short periods of absence, the Company may request that you attend a medical examination or that an independent medical report is produced on your health. You hereby agree to consent to a medical examination (at the Company's expense) by a doctor nominated by the Company should the Company so requires. You agree that any report produced in connection with any such examination may be disclosed to the Company and the Company may discuss the contents of the report with the relevant doctor.

9. Termination and Notice Period

- 9.1. After successful completion of your probationary period as provided in clause 2.2, and subject to clauses 9.2 and 9.3, the prior written notice required from you or the Company to terminate your employment will be as follows:
 - 9.1.1. one calendar month's notice until you have been continuously employed for four complete years; and
 - 9.1.2. one additional week's notice for each completed year of continuous employment thereafter up to a maximum of 12 weeks' notice.
- 9.2. The Company will be entitled to dismiss you at any time without notice or payment in lieu of notice if you commit a serious breach of your obligations as an employee, or if you cease to be entitled to work in the United Kingdom in accordance with section 8 of the Asylum and Immigration Act 1996.
- 9.3. The Company may, in its sole and absolute discretion, terminate your employment at any time and with immediate effect by paying a sum in lieu of notice equal to your basic salary only for all or part of your notice period, less income tax and national insurance contributions. For the avoidance of doubt any payment in lieu will not include any element in relation to any bonus or commission payments that might otherwise have been due during the period for which the payment in lieu is made; any payment in respect of benefits which you would have been entitled to receive during the period for which the payment in lieu is made; and any payment in respect of any holiday entitlement that would have accrued during the period for which the payment in lieu is made. You will have no right to receive a payment in lieu unless the Company has exercised its discretion in this clause. Nothing in this clause will prevent the Company from terminating your employment in breach.

10. Disciplinary and Grievance Procedures

- 10.1. You are subject to the Company's disciplinary and grievance procedures which are outlined in the Company Handbook. The procedures themselves do not form part of your contract of employment and may change from time to time.
- 10.2. If you wish to appeal against a disciplinary decision you may apply in writing to the Chair of the Board of Directors in accordance with the Company's disciplinary procedure.
- 10.3. The Company reserves the right to suspend you with pay whilst the Company carries out a disciplinary investigation into any alleged misconduct or neglect against you. During any period of suspension, you will continue to receive your salary and contractual benefits.
- 10.4. If you wish to raise a grievance you may apply in writing to the Company in accordance with the Company's grievance procedure.

11. Pension

- 11.1. The Company will honour its statutory obligations to provide a contributory workplace pension scheme as outlined the Company Handbook.
- 11.2. A contracting-out certificate is not in force in respect of your employment.

12. Collective Agreement

- 12.1. There is no collective agreement which directly affects your employment.

13. Changes to Your Terms of Employment

- 13.1. The Company reserves the right to make reasonable changes to any of your terms of employment. You will be notified in writing of any change as soon as possible and in any event within one month of the change.
- 13.2. Company policy may be modified from time to time, for example by updates to the Company Handbook.

14. Confidential Information

- 14.1. You will not use or disclose to any person either during or at any time after your employment with the Company any confidential information which may come to your knowledge in the course of your employment. For the purposes of this clause confidential information means any information or matter which is not in the public domain and which relates to the affairs of the Company, any associated company, or any of its or their business contacts.
- 14.2. The restriction in clause 14.1 does not apply to:
 - 14.2.1. prevent you from making a protected disclosure within the meaning of Section 43A of the Employment Rights Act 1996; or
 - 14.2.2. use or disclosure that has been authorised by the Company is required by law or by your employment.

15. Intellectual Property

- 15.1. The following definitions apply in this agreement:-

“Intellectual Property Rights”: means patents, rights to Inventions, copyright and related rights, trademarks, trade names and domain names, rights in get-up, rights in goodwill or to sue for passing off, rights in designs, rights in computer software, database rights, rights in confidential information (including know-how and trade secrets) and any other intellectual property rights, in each case whether registered or unregistered and including all applications (or rights to apply) for, and renewals or extensions of such rights and all similar

or equivalent rights or forms of protection which may now or in the future subsist in any part of the world.

“Inventions”: means inventions, ideas and improvements, whether or not patentable, and whether or not recorded in any medium.

- 15.2. You will give the Company full written details of all Inventions and of all works embodying Intellectual Property Rights made wholly or partly by you at any time within working hours or using Company property during the course of your employment which relate to, or are reasonably capable of being used in, the business of the Company or any associated company. You acknowledge that all Intellectual Property Rights subsisting (or which may in the future subsist) in all such Inventions and works will automatically, on creation, vest in the Company absolutely. To the extent that they do not vest automatically, you hold them on trust for the Company. You agree promptly to execute all documents and do all acts as may, in the opinion of the Company, be necessary to give effect to this clause.
- 15.3. You hereby irrevocably waive all moral rights under the Copyright, Designs and Patents Act 1988 (and all similar rights in other jurisdictions) which you have or will have in any existing or future works referred to in the above clause.
- 15.4. You hereby irrevocably appoint the Company to be your attorney to execute and do any such instrument or thing and generally to use your name for the purpose of giving the Company or its nominee the benefit of this clause and acknowledge in favour of a third party that a certificate in writing signed by any Director or the Secretary of the Company that any instrument or act falls within the authority conferred by this clause will be conclusive evidence that such is the case.

16. Data Protection

- 16.1. You hereby consent to the Company or any associated company processing data relating to you for legal, personnel, administrative and management purposes and in particular to the processing of any sensitive personal data (as defined in the Data Protection Act 1998) relating to you including, as appropriate:
 - 16.1.1. information about your physical or mental health or condition in order to monitor sick leave and take decisions as to your fitness for work;
 - 16.1.2. your racial or ethnic origin or religious or similar beliefs in order to monitor compliance with equal opportunities legislation; and/or
 - 16.1.3. information relating to any criminal proceedings in which you have been involved for insurance purposes and in order to comply with legal requirements and obligations to third parties.

- 16.2. The Company may make such information available to any associated company, those who provide products or services to the Company or any associated company (such as advisers and payroll administrators), regulatory authorities, potential or future employers, governmental or quasi-governmental organisations and potential purchasers of the Company or the business in which you work.
- 16.3. You hereby consent to the transfer of such information to any associated company or to the Company or any associated company's business contacts outside the European Economic Area in order to further its or their business interests even where the country or territory in question does not maintain adequate data protection standards.

17. Monitoring

- 17.1. For the purpose of ensuring that the Company's rules are being complied with and for legitimate business purposes, you hereby consent to the Company monitoring and recording any use that you make of the Company's electronic communications systems. You will also comply with any electronic communication systems policies that the Company may issue from time to time.

18. Care and Return of Company Property

- 18.1. All documents, manuals, hardware and software provided for your use by the Company, and any data or documents (including copies) produced, maintained or stored on the Company's computer systems or other electronic equipment (including laptops, mobile phones, memory sticks), remain the property of the Company.
- 18.2. Any such property of the Company in your possession or under your control must be cared for properly as if it was your own and it, together with any original or copy documents obtained by you in the course of your employment, must be returned to the Company at any time on request and in any event prior to the termination of your employment with the Company.

19. Third-Party Rights

- 19.1. The Contracts (Rights of Third Parties) Act 1999 will not apply to this agreement. No person other than you and the Company will have any rights under this agreement and this agreement will not be enforceable by any person other than you and the Company.

20. Governing Law and Jurisdiction

- 20.1. This contract will be governed by and construed in accordance with the law of England and Wales.

20.2. Both you and the Company agree to submit to the exclusive jurisdiction of the courts of England and Wales over any claim or matter arising under or in connection with this contract.

This document has been executed as a deed and is delivered and takes effect on the date stated at the beginning.

Executed as a deed by
OPEN UTILITY LTD


.....
Director signature

25/5/21
.....
Date

Signed as a deed by
Oliver Mark Cristian Yerbury-Hodgson


.....
Employee signature

May 20, 2021
.....
Date